

STATE OF NEW YORK

7830--A

2025-2026 Regular Sessions

IN SENATE

May 9, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Crime Victims, Crime and Correction -- recommitted to the Committee on Crime Victims, Crime and Correction in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the correction law, in relation to registration requirements applicable to certain sex offenders who are transient

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 3 of section 168-f of the correction law, as
2 amended by chapter 364 of the laws of 2012, is amended to read as
3 follows:
4 3. The provisions of subdivision two of this section shall be applied
5 to a sex offender required to register under this article except that
6 such sex offender designated as a sexual predator or having been given a
7 level three designation must personally verify [~~his or her~~] their
8 address with the local law enforcement agency every ninety calendar days
9 after the date of release or commencement of parole or post-release
10 supervision, or probation, or release on payment of a fine, conditional
11 discharge or unconditional discharge. At such time the law enforcement
12 agency having jurisdiction may take a new photograph of such sex offen-
13 der if it appears that the offender has had a change in appearance since
14 the most recent photograph taken pursuant to paragraph (b-2) of subdivi-
15 sion two of this section. If such photograph is taken, the law enforce-
16 ment agency shall promptly forward a copy of such photograph to the
17 division. The duty to personally verify shall be temporarily suspended
18 during any period in which the sex offender is confined to any state or
19 local correctional facility, hospital or institution and shall imme-
20 diately recommence on the date of the sex offender's release. The duty
21 to personally verify shall apply to individuals who are experiencing

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [~~-~~] is old law to be omitted.

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- 1 homelessness, who may identify a specific location within a community
- 2 which they consider their home base, to which they return to regularly,
- 3 manifest an intent to remain for the present, and a place from which
- 4 such individual can receive messages and be contacted.
- 5 § 2. This act shall take effect immediately.